

The Assam Excluded Areas (Merchandise Marks) Regulation, 1942

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State of Assam - Act

The Assam Excluded Areas (Merchandise Marks) Regulation, 1942

ASSAM

India

The Assam Excluded Areas (Merchandise Marks) Regulation, 1942

Act 2 of 1942

Published on 9 December 1942

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The Assam Excluded Areas (Merchandise Marks) Regulation, 1942

Regulation 2 of 1942

Last Updated 12th February, 2020

First published in the Assam Gazette, dated the 9th December, 1942.

[Received the assent of the Governor-General on the 31st October, 1942].

A Regulation to apply the Indian Merchandise Marks Act, 1889 as amended by the Indian Merchandise Marks (Amendment) Act, 1941, to the Sadiya, Balipara and the Lakhimpur Frontier Tracts.

Preamble. - Whereas it is expedient to apply the Indian Merchandise Marks Act, 1889 (Act 4 of 1889) as amended by the Indian Merchandise Marks (Amendment) Act, 1941 (Act

2 of 1941

) and to make certain consequential amendments in the Indian Penal Code, 1860 (Act 45 of 1860), in its application to

the Sadiya, Balipara and the Lakhimpur Frontier Tracts, and whereas by sub-section (2) of Section 92 of the Government of India Act, 1935, the Governor is empowered to make Regulations for the peace and good Government of any area in his Province which is for the time being an excluded area :

Now, therefore, the Governor of Assam in exercise of the said powers and of all other powers enabling him in that behalf, is pleased to make the following Regulation for the said areas which have been declared to be excluded areas by the Government of India (Excluded and Partially Excluded Areas) Order, 1936.

1.

Short title.

(a)

This Regulation may be called the Assam Excluded Areas (Merchandise Marks) Regulation, 1942.

(b)

Local extent. - It extends to the whole of the Sadiya, Balipara and the Lakhimpur Frontier Tracts, hereinafter referred to as "the said Tracts".

(c)

Commencement. - It shall come into force on such date as the Governor may by notification in the official Gazette appoint.

2.

Application of Act 4 of 1889 as amended with amendment.

- The Indian Merchandise Marks Act, 1889 (Act 4 of 1889) as amended by the Indian Merchandise Marks (Amendment) Act, 1941 (Act

2 of 1941

) shall apply to and be in force in the said Tracts, subject to the following amendments :

(a)

In Section 13, the words, "or Section 18 of the Sea Customs Act, 1878 as amended by this Act", shall be omitted; and

(b)

In Section 19, the words "and Clause (f) of Section 8 of the Sea Customs Act, 1878, as amended by this Act", shall be omitted.

3.

Application of Sections 12 and 13 of Act

2 of 1941

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- The provisions of Sections 12 and 13 of the Indian Merchandise Marks (Amendment) Act, 1941 (Act

2 of 1941

) shall apply to and be in force in the said tracts.

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